

HOUSE No. 222**The Commonwealth of Massachusetts**

PRESENTED BY:

Mindy Domb and Andres X. Vargas*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to an agricultural healthy incentives program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/15/2025</i>
<i>Andres X. Vargas</i>	<i>3rd Essex</i>	<i>1/15/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/6/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/30/2025</i>
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>3/6/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/17/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>3/6/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/6/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>3/6/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/1/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/25/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/17/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>3/6/2025</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>3/31/2025</i>
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>3/6/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>4/30/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>3/17/2025</i>

<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>6/17/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>3/6/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/6/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>3/6/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/17/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/4/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>3/6/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>3/25/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/31/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/17/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>6/18/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>3/20/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/17/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>3/6/2025</i>
<i>Samantha Montaña</i>	<i>15th Suffolk</i>	<i>3/6/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>3/31/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>3/6/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>3/6/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>3/6/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/4/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/20/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>3/17/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/6/2025</i>
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>3/20/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/6/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/6/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>3/17/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>3/6/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/6/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>3/6/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>4/4/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/17/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>7/25/2025</i>
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>7/22/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>7/22/2025</i>

HOUSE No. 222

By Representatives Domb of Amherst and Vargas of Haverhill, a petition (accompanied by bill, House, No. 222) of Mindy Domb, Andres X. Vargas and others for legislation to authorize agricultural healthy incentives program. Children, Families and Persons with Disabilities.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to an agricultural healthy incentives program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 128 of the General Laws is hereby amended by inserting after
2 section 2E the following section:-

3 Section 2F. (a) The department of transitional assistance, in partnership with the
4 department of agricultural resources and the department of public health, shall operate a year-
5 round healthy incentives program. The program shall provide that Supplemental Nutrition
6 Assistance Program benefits, established pursuant to the Food and Nutrition Act of 2008, 7
7 U.S.C. section 2011 hereinafter referred to as SNAP, redeemed for fruit and vegetable purchases,
8 either fresh, canned, dried or frozen, by a SNAP recipient at a participating vendor, shall entitle
9 the recipient to receive a matching benefit reimbursed on the recipient's EBT card, within limits
10 to be established by the department. When expanding the number of participating vendors, the
11 department shall prioritize improving access in areas with limited access to fresh, local produce
12 and that are historically underserved by the program. The department shall collaborate with local

13 food coalitions and nonprofit groups to develop community outreach strategies that ensure
14 equitable access to, and knowledge of, the program.

15 (b) There shall be established and set up on the books of the commonwealth a separate
16 fund, to be administered by the commissioner of the department of transitional assistance, which
17 shall be known as the Massachusetts Healthy Incentives Fund. The Fund shall consist of all
18 revenues from public and private sources as appropriations, gifts, grants, donations,
19 reimbursements from the federal government and grants-in-aid or other receipts to further the
20 purposes of the Fund in accordance with this section.

21 (c) The department of transitional assistance and its partners may apply for any available
22 federal programs such as Gus Schumacher Nutrition Incentive Program administered by the
23 United States department of agriculture to provide matching benefits to be deposited in the Fund.

24 (d) The department of transitional assistance shall, annually on or before January 31,
25 submit a report of the healthy incentives program's activities to the clerks of the house and the
26 senate, the house and senate committees on ways and means, the committee on children, families
27 and persons with disabilities and the committee on agriculture and shall post the report on the
28 department's website. The report shall include, but not be limited to: (i) the number of
29 households utilizing the program, including household size, age and racial demographic
30 information; (ii) the number of program transactions; (iii) the number and name of vendors
31 processing program transactions; (iv) a breakdown of the total number of program participants
32 and vendors, by their municipality; (v) the number of vendors, by their municipalities, who
33 applied to be a vendor with the healthy incentives program but were not accepted as a vendor
34 due to funding or administrative shortages; (vi) the department's efforts, plans and timeline for

35 identifying geographic areas that are underserved by the program and increasing program
36 activity in those areas, including metrics and factors to be used to make determinations for the
37 addition and siting of vendors; and (vii) any further recommendations to improve the
38 performance of the program.

39 SECTION 2. The department of transitional assistance shall promulgate rules and
40 regulations to implement the program set forth in section 1.